

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR JULY 24, 2026 AT 8:30 A.M.**

19. S-CV-0056677 RASMUSSEN, CASEY v. BURNS, CHRISTA

The seventh cause of action for slander of title is deficiently pleaded as it falls outside the three-year statute of limitations and there are insufficient facts pleaded to allege tolling of the statute of limitations. (Code of Civil Procedure section 338(g).)

The ninth and tenth causes of action for rescission cannot stand as currently pleaded. Rescission is a remedy available to a contracting party, based upon a breach of contract or fraud, where that party no longer desires to keep the contract alive. (*Wong v. Stoler* (2015) 237 Cal.App.4th 1375, 1384.) The underlying fraud claims related to the remedies sought in these two claims are deficiently pleaded and do not provide sufficient factual allegations to support either remedy.

The twelfth cause of action fails to sufficiently allege facts regarding the receipt of stolen property. (Penal Code section 496(a).)

The demurrer is overruled as to the eighth cause of action. The allegations in this claim, when the FAC-C is read as a whole, are sufficient to allege constructive trust.

The demurrer is overruled as to the eleventh cause of action for intentional infliction of emotional distress. The allegations in this claim, when the FAC-C is read as a whole, are sufficient to allege the claim.

The demurrer is overruled as to the thirteenth, fourteenth, and fifteenth cause of action for declaratory relief. The allegations within each claim, when read in conjunction with the FAC-C as a whole, are sufficient to allege the claims.

The second amended cross-complaint shall be filed and served by August 21, 2026.

Cross-Defendant Casey Rasmussen's Motion to Strike the First Amended Cross-Complaint (FAC-C)

The motion to strike is granted in its entirety with leave to amend. The FAC-C does not allege sufficient facts to support the punitive damages or treble damages.

The second amended cross-complaint shall be filed and served by August 21, 2026.

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